

Digvijay Singh v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 5 July 2019 · Writ-C No. 21318 of 2019 · WRIT - C No. 21318 of 2019 ·
Writ disposed; deposit processing fee, then process application in accordance with law.

HEADNOTE

Under clause 4.4 of the Electricity Supply Code, 2005, a new-connection application is processed only after the processing fee is deposited. Where the petitioner could not show that the fee had been paid, the High Court disposed of the writ by directing deposit within one week and, on deposit, processing of the application in accordance with law within two weeks, with connection to be granted only if necessary.

FACTUAL SUMMARY

Digvijay Singh applied to Purvanchal Vidyut Vitran Nigam Ltd. on 20 September 2018 for an electricity connection. The application was not processed. He approached the Allahabad High Court, alleging that despite repeated visits to the Executive Engineer no connection had been granted. Counsel for the Nigam, on instructions, stated that clause 4.4 of the Electricity Supply Code, 2005 required the processing fee to be deposited before the application could be processed. The petitioner could not show that the fee had been paid.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

processing-fee-precondition-for-new-connection-application

HOLDING

Clause 4.4 of the Electricity Supply Code, 2005 requires the applicant to deposit the processing fee with the new-connection application; only thereafter is the application liable to be processed. Where that fee had not been shown to have been deposited, the Court directed the petitioner to deposit it within one week and, on deposit, required the Executive Engineer to process the application in accordance with law within two weeks, the connection to be granted if necessary. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO A NEW CONNECTION ON THE MERITS

Left to the Executive Engineer to process the application in accordance with law after deposit of the processing fee, with connection to be granted only if necessary. ¶ 1